

Syllabus

best analogy that can be drawn between an old and the new must be sought. Pp. 376–378.

(b) There is no direct antecedent of modern claim construction in the historical sources. The closest 18th-century analogue to modern claim construction seems to have been the construction of patent specifications describing the invention. Early patent cases from England and this Court show that judges, not juries, construed specification terms. No authority from this period supports Markman’s contention that even if judges were charged with construing most patent terms, the art of defining terms of art in a specification fell within the jury’s province. Pp. 378–384.

(c) Since evidence of common-law practice at the time of the framing does not entail application of the Seventh Amendment’s jury guarantee to the construction of the claim document, this Court must look elsewhere to characterize this determination of meaning in order to allocate it as between judge or jury. Existing precedent, the relative interpretive skills of judges and juries, and statutory policy considerations all favor allocating construction issues to the court. As the former patent practitioner, Justice Curtis, explained, the first issue in a patent case, construing the patent, is a question of law, to be determined by the court. The second issue, whether infringement occurred, is a question of fact for a jury. *Winans v. Denmead*, 15 How. 330, 338. Contrary to Markman’s contention, *Bischoff v. Wethered*, 9 Wall. 812, and *Tucker v. Spalding*, 13 Wall. 453, neither indicate that 19th-century juries resolved the meaning of patent terms of art nor undercut Justice Curtis’s authority. Functional considerations also favor having judges define patent terms of art. A judge, from his training and discipline, is more likely to give proper interpretation to highly technical patents than a jury and is in a better position to ascertain whether an expert’s proposed definition fully comports with the instrument as a whole. Finally, the need for uniformity in the treatment of a given patent favors allocation of construction issues to the court. Pp. 384–391.

52 F. 3d 967, affirmed.

SOUTER, J., delivered the opinion for a unanimous Court.

William B. Mallin argued the cause for petitioners. With him on the briefs were *Timothy P. Ryan*, *Timothy S. Coon*, *Lewis F. Gould, Jr.*, and *Stephan P. Gribok*.